



File No.: EXP202403841

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 27/07/2023, a complaint was received by this Agency filed by A.A.A. and B.B.B., (...), C.C.C. (hereinafter, the complainant), against D.D.D. with NIF ***NIF.1 (hereinafter, the respondent), for a possible violation of personal data protection regulations.

The reasons for the complaint are as follows:

The publication on the D.D.D. Telegram channel, dated ***DATE.1, of two images in which the complainant appears, a minor (17 years old) who did not consent to the aforementioned processing. In the images, the complainant appears (...). However, in the comment accompanying the images, she is identified as 'friend' of her father.

Along with the complaint, various screenshots of the publication subject to the complaint are provided, as well as messages that followed regarding it from users who viewed it.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 26/09/2023, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified by postal mail to the address ***ADDRESS.1, resulting in "Returned to Origin by Unknown" on 06/10/2023.

Subsequently, a new attempt was made on 09/10/2023, and the result was "Returned to Origin due to Incorrect Address" on 08/11/2023.

THIRD: On 30/10/2023, in accordance with Article 65.5 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD.

On 28/11/2023, a request for information was made to the respondent, by postal means to the address provided by the Tax Agency following diligence carried out by this Spanish Agency for Data Protection (***ADDRESS.2). The result of this communication was "Returned to Origin due to Excess" on 08/01/2024.

On 11/01/2024, a new request for information was made by postal means to the respondent at the address listed in the municipal register, resulting in "Returned to Origin due to Incorrect Address" on 23/01/2024.

On 29/01/2024, the postal request for information was reiterated to the address provided by the Tax Agency, resulting in "Returned to Origin due to Excess (not collected at office)" on 15/02/2024.

FIFTH: The file contains various press references that echo the social media activity of the respondent and identify her by the pseudonym D.D.D., holder of the Telegram channel where the image subject to the complaint was published.

SIXTH: The file includes a diligence dated 03/05/2024, which states the result of the consultation made on the Telegram channel of the respondent (***URL.1), where the image subject to the complaint appears. Additionally, the number of followers on that date on the mentioned Telegram channel is (...).

SEVENTH: On 06/05/2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and

64 of the LPACAP, for the alleged infringement of Article 5.1.c) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified in Article 83.5 of the GDPR.

Furthermore, the aforementioned initiation agreement ordered the respondent to adopt the provisional measure consisting of the temporary suspension of the processing of personal data subject to the complaint through the removal of the content published on the respondent's Telegram channel (D.D.D.). This provisional measure was to be adopted within a maximum period of ten calendar days from the notification of the initiation agreement of the sanctioning procedure.

The initiation agreement, in accordance with the rules established in the LPACAP, was attempted to be notified by postal mail to the address ***ADDRESS.2, resulting in the first attempt "Absent" on 28/05/2024 and the second, "Returned to Origin by Unknown" on 31/05/2024.

Finally, and in accordance with the provisions of Article 44 of the LPACAP, it was notified by announcement published in the BOE on 06/06/2024.

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EIGHTH: Once the aforementioned initiation agreement was notified in accordance with the provisions established in the LPACAP and the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the respondent party.

NINTH: After the period for the adoption of the provisional measure agreed on 26/06/2024 had also elapsed, this Agency accessed the Telegram channel of the respondent party (D.D.D.) and verified that the publication subject to the complaint remained accessible.

Furthermore, the number of followers of their Telegram channel (D.D.D.) had increased to (...).

TENTH: On 08/07/2024, the instructor of the procedure issued a resolution proposal in which it was proposed to impose a fine of €5,000 on the respondent party, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the infringement of Article 5.1.c) of the GDPR, classified under Article 83.5.a) of the GDPR.

Additionally, in the aforementioned resolution proposal, it was proposed to make definitive the provisional measure consisting of the suspension of the processing of personal data subject to the complaint through the removal of the content published on the Telegram channel of the respondent party (D.D.D.).

This resolution proposal, in accordance with the provisions established in the LPACAP, was attempted to be notified by postal mail to the address ***ADDRESS.3 on 26/07/2024, resulting in "Returned to Sender - Unknown"; and to the address ***ADDRESS.2, resulting in "Returned to Sender - Unknown" on 13/08/2024.

Finally, and in accordance with the provisions of Article 44 of the LPACAP, it was published in the BOE on 26/08/2024.

ELEVENTH: Once the aforementioned resolution proposal was notified, in accordance with the provisions established in the LPACAP and after the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the respondent party (D.D.D.).

TWELFTH: On 11/09/2024, this Agency accessed the Telegram channel of the respondent party (D.D.D.) and verified that the publication subject to the complaint remained accessible.

Furthermore, the number of followers of their Telegram channel (D.D.D.) had increased to (...).

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

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FIRST: The respondent party is the owner of a Telegram channel named D.D.D.

On ***DATE.1, the respondent party published the following message on that Telegram channel: "(...)."

Along with the news identifying the father of the complainant party, there are two photographs featuring both individuals with a watermark (...). In the images, the man is wearing green pants and a blue shirt, and the woman is wearing a light t-shirt and jeans. One image shows them from behind, and the other shows them from the front.

SECOND: As of 03/05/2024, the publication subject to the complaint remained accessible on the Telegram channel of the respondent party (D.D.D.).

Furthermore, the number of followers on that date on the aforementioned Telegram channel is (...).

THIRD: By agreement to initiate sanctioning proceedings dated 06/05/2024, the respondent party was ordered to adopt the provisional measure consisting of the removal of the content published on its Telegram channel that is subject to the complaint. This provisional measure was to be adopted within a maximum period of ten calendar days from the notification of the initiation agreement of the sanctioning procedure.

FOURTH: As of 26/06/2024, after the period granted for compliance with the aforementioned provisional measure had elapsed, the publication subject to the complaint remained accessible on the Telegram channel of the respondent party (D.D.D.).

FIFTH: As of 26/06/2024, the number of followers of the Telegram channel of the respondent party (D.D.D.) was (...).

SIXTH: Following the resolution proposal dated 08/07/2024, as of 11/09/2024, the publication subject to the complaint remained accessible on the Telegram channel of the respondent party (D.D.D.).

Furthermore, the number of followers of their Telegram channel (D.D.D.) was (...).

LEGAL GROUNDS

I

Competence and procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of..."

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in the Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development and, insofar as they do not contradict them, subsidiarily, by the general rules on administrative procedures."

II

Preliminary Issues

Article 4.1 of the GDPR defines personal data as "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

For its part, paragraph 2 of the same provision defines data processing as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction;"

Finally, paragraph 7 defines the data controller or controller as "the natural or legal person, public

authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its designation may be established by the law of the Union or of the Member States;”

In the present case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since the respondent has disseminated in its Telegram channel (D.D.D.) the image of the claimant.

It should also be noted that the respondent carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR, being the Telegram channel owned by it where the processing of personal data subject to this complaint has occurred.

III

Right to Data Protection

This procedure is initiated through the complaint filed by the claimant due to the fact that the respondent published in its Telegram channel (D.D.D.) their image, taken in a public space, and included in a chat where various derogatory remarks were made and associated their person as a friend or companion of C/ Jorge Juan, 6, who is, in fact, their father. It is noteworthy that, at the time of the events, the claimant was a minor and that the images were taken without their consent.

First of all, it should be recalled that individuals have the power of disposition over their personal data and its dissemination, resulting, without a doubt, in deserving protection the person whose personal data is disseminated in violation of the legal order.

Thus, the STC 292/2000, of November 30, states that “the content of the fundamental right to data protection consists of a power of disposition and control over personal data that enables the person to decide which of those data to provide to a third party, whether the State or a private individual, or which this third party may collect, and that also allows the individual to know who possesses that personal data and for what purpose, being able to oppose that possession or use. These powers of disposition and control over personal data, which constitute part of the content of the fundamental right to data protection, are legally concretized in the faculty to consent to the collection, obtaining, and access to personal data, its subsequent storage and processing, as well as its possible use or uses, by a third party, whether the State or a private individual. And that right to consent to the knowledge and processing, whether computerized or not, of personal data requires as indispensable complements, on the one hand, the faculty to know at all times who has that personal data and to what use it is being subjected, and, on the other hand, the power to oppose that possession and uses.”

In this regard, and regardless of what the legal basis legitimizing the processing may be, every data controller must respect the principles of processing set forth in Article 5 of the GDPR.

The principles relating to processing are, on the one hand, the starting point and the closing clause of the legal order of data protection, constituting true guiding rules of the system with intense expansive force. On the other hand, having a high level of specificity, they are mandatory norms susceptible to being infringed.

More specifically, it is worth highlighting the principle set forth in Article 5.1.c) of the GDPR which states that:

“1. Personal data shall be:

(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);”

IV

Balance between the right to the protection of personal data and other fundamental rights and freedoms

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However, the fundamental right to the protection of personal data is not absolute, as it may yield to the prevalence of other rights and freedoms that are also constitutionally recognized and protected, such as, for example, the fundamental right to freedom of information or expression, being weighed on a case-by-case basis.

In this regard, the Article 29 Working Party in its Opinion 06/2014 on the concept of legitimate interest of the data controller under Article 7 of Directive 95/46/EC, when examining the legal basis of legitimate interest under Article 7.1.f) of Directive 95/46/EC, fully transferable to the current Article 6.1.f) of the GDPR, includes the right to freedom of expression or information as one of the scenarios in which the issue of legitimate interest may arise, asserting that “without prejudice to whether the interests of the data controller will ultimately prevail over the interests and rights of the data subjects when the balancing test is carried out.”

That said, the fundamental rights to freedom of information or expression are also not absolute. We can observe very clear limits established by the courts in the civil sphere, in relation to the right to honor, personal and family privacy, and one's own image.

Thus, we will cite the Supreme Court ruling 50/2017, First Civil Chamber, of January 27, 2017 (appeal 2139/2015) which states:

“In this sense, it is reiterated jurisprudence (see among the most recent, and as a doctrinal summary, the ruling 605/2015, of November 3) that the abstract prevalence of the freedoms of expression and information ‘can only be reversed in the specific case by considering the relative weight of honor and privacy according to the specific circumstances at hand, provided that the information and opinions disclosed refer to matters of general interest or public relevance (either by the individuals or by the subject matter), that the communication does not involve the unnecessary use of unequivocally offensive or degrading expressions and, in the case of freedom of information, provided that they are truthful, specifying in any case that in the area of protection of the right to privacy, the criterion for determining the legitimacy or illegitimacy of intrusions is not that of truthfulness but that of the public relevance of the disclosed fact, that is, that its communication to the public, even if true, is necessary based on the public interest of the matter being reported” (the emphasis is ours).

This is not about giving precedence to one fundamental right over another but about finding a balance between both that allows for the reconciliation of both rights; a reconciliation to which the European legislator itself refers in Article 85 of the GDPR. And one of the elements to be taken into consideration is, precisely, whether the intrusion—in the case at hand, the processing of personal data of a minor—is or is not necessary to achieve the intended purpose; in this specific case, with the publication of the information.

At this point, it is necessary to bring to light the jurisprudence that analyzes the relationship between freedom of information and expression, on one hand, and the rights of those affected by informational content.

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Thus, the European Court of Human Rights (ECHR), in its judgment of June 19, 2012, issued in case 1593/2006, states the following:

"Although the press must not overstep certain limits, particularly with regard to the reputation and rights of others or to the proper administration of justice, its duty is, nevertheless, to impart, in a manner consistent with its obligations and responsibilities, information and ideas on all matters of public interest (paragraph 48)

(...), the publication of photographs and articles whose sole purpose is to satisfy the curiosity of a particular reader regarding the details of the private life of a public figure cannot be considered to contribute to any debate of general interest to society, even though the person is known to the public. Under such conditions, freedom of expression requires a stricter interpretation (...). (paragraph 50).

(...) In verifying whether the authorities have achieved a fair balance between two protected values guaranteed by the Convention that may conflict with each other in such cases—the freedom of

expression protected by Article 10 and the right to respect for private life enshrined in Article 8—the Court must balance the public interest in the publication of information and the need to protect private life (see *Hachette Filipacchi Associés v. France*, no. 71111/01, § 43, ECHR 2007-VII). (Paragraph 51). (The underlining is ours)

On the other hand, and being of interest in the case at hand, it should be mentioned the judgment 27/2020, of February 24, issued by the Constitutional Court in its case 1379/2017, in which it analyzes the limits that must be imposed on the use of a person's image as an informational resource.

Thus, after pointing out that we must insist again that the physical aspect, as a basic instrument of identification and external projection and an essential factor for one's own recognition as a person, constitutes the first element shaping the personal sphere of every individual (Constitutional Court Judgments 156/2001, FJ 6 and 99/1994, FJ 5), it concludes that the first rule for achieving the protection of this fundamental right is that in order to capture, reproduce, and/or publish the image of a person, unequivocal consent is indispensable, with exceptions being rare cases in which such authorization is not required (...). (The underlining is ours)

And, subsequently, it reasons as follows:

"when the right to one's own image collides with other goods or constitutionally protected rights, particularly the freedoms of expression and information (art. 20.1.a and d CE), the different conflicting interests must be weighed, and, taking into account the specific circumstances of each case, decide which interest deserves greater protection" (Constitutional Court Judgments 105/1990, of June 6; 72/2007, FJ 5 and 156/2001, FJ 6). (...) As can be easily deduced, this occurs not only in its confrontation with the rights to honor and privacy but also with the fundamental right to one's own image, for example, in those cases where photographs or video clips are disseminated in the information that can only be understood as...

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mere instruments for satisfying others' curiosity and have been included not with an informative function, but with the aim of quenching the expectation that, in those terms, a specific piece of news may raise." (the underlining is ours)

(...) the image of an anonymous or unknown individual, or in other words, one who does not hold a public office or a profession of notoriety, even if captured in a public place, cannot be used without their express consent, except in two cases. First, when the person appears in the photograph in a merely accessory and inconsequential manner, without any prominence. Secondly, in the case where the initially anonymous person's participation in the newsworthy event is principal or prominent, in which case their fundamental right to their image must yield to the right to information, precisely due to the non-accessory role that the subject has assumed. (...)

Although the risks of intrusion have increased exponentially with the mass use of social networks, to ward them off we must continue to start from the same basic principle that governs the analog environment and affirm that the constitutional recognition of the fundamental rights encompassed in Article 18 of the Spanish Constitution entails the individual's power to control the data circulating on social networks that concern them. Consequently, we reiterate that, unless there is unequivocal authorization for the capture, reproduction, or publication of the image by its holder, the interference in the fundamental right to one's own image must necessarily be justified by the predominant public interest in accessing and disclosing it. (...) Consent only protects what constitutes the object of the declaration of will. The holder of the fundamental right must authorize the specific act of using their image and the purposes for which it is granted. Consent given, for example, for the capture of the image does not extend to other subsequent acts, such as its publication or dissemination.

Taking the above into account, and noting that there has been a processing of personal data that constitutes an intrusion into the fundamental right of the claimant to the protection of their personal data, it should be recalled that the affected party was a minor at the time of the events. In this sense, it should be noted some of the numerous judicial pronouncements that highlight the reinforced protection

that should be afforded to minors against illegitimate intrusions into their fundamental rights.

Thus, as indicated by the Supreme Court, First Chamber, Civil, in its Judgment 1003/2008 of October 23, 2008, (Rec. 174/2005, Second Legal Ground)

The Constitution, in its Article 18, generally recognizes the right to honor, personal and family privacy, and one's own image, and in Article 20.1.d) the right to freely communicate or receive truthful information by any means of dissemination, specifying that this freedom finds its limit in respecting the rights recognized in this title and "especially in the right to honor, to privacy, to one's own image, and to the protection of youth and childhood." In line with the above, the special protection that must be given to data relating to minors has been enshrined in the Organic Law 1/96, of January 15, on the Legal Protection of Minors.

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In the interpretation of these fundamental rights, the Constitutional Court has indicated that for the right to privacy to legitimately oppose the right to freedom of receiving or transmitting information, it is necessary that the disseminated news lacks public interest or that, even if it is of public interest, it lacks truthfulness. In a democratic society that proclaims respect for the dignity of the person as one of the principles that inspire its coexistence, the disclosure of facts that belong to the intimacy of private citizens must not be tolerated, nor should the dissemination of untruthful news be tolerated—not in the sense that it does not exactly match what occurred, but in the sense that the publisher has exercised the necessary diligence to ensure that what is disclosed is not merely a rumor -Judgments of the Constitutional Court 54/2004, of April 15, and 61/2004, of April 19-.

However, in cases involving minors, constitutional doctrine has granted a scope of super-protection that requires extreme caution regarding the information provided about them, even if it has public interest. Thus, the Constitutional Court has indicated that the legitimate interest of a minor in not having data related to their family or personal life disclosed "seems to impose an insurmountable limit on both freedom of expression and the fundamental right to freely communicate truthful information, without the alleged truthfulness of what is revealed exonerating the media from responsibility for the intrusion into the private life of both minors," even if the news deserves the label of neutral information -Judgment of the Constitutional Court of July 15, 1999- (the underlining is ours).

In the same vein, it is worth noting the ruling of the Supreme Court in its Judgment 777/2021 of November 11, 2021, (First Chamber, Civil, Rec. 6775/2020). The notoriety of the parents does not simply allow for the transfer of the public notoriety modulating factor to their minor children in the protection of the rights to privacy and personal image (judgments of this chamber 792/2004, of July 12, 123/2009, of February 25, and 456/2009, of June 17; STC 134/1999, of July 15). The legal framework provides special protection for the interest of the minor when it comes to the capture and dissemination of images of children and adolescents in the media.

In the words of STC 158/2009, of June 29, 2009 (FJ 4):

"It should be noted that, in accordance with art. 20.4 CE, the freedoms of expression and information have their limit in the respect for the rights recognized in Title I, in the laws that develop it 'and, especially, in the right to honor, to privacy, to one's own image, and to the protection of youth and childhood.' Likewise, international norms for the protection of children must be taken into account (regarding whose interpretative value under art. 10.2 CE it is unnecessary to insist), and, among them, particularly, the United Nations Convention on the Rights of the Child (ratified by Spain by Instrument of November 30, 1990), which guarantees the right of children to the protection of the law against arbitrary or illegal interference in their private life (art. 16), as well as the Resolution of the European Parliament regarding the European Charter of the Rights of the Child."

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It is established that "every child has the right not to be the subject of unjustified intrusions by a third party into their private life, that of their family, nor to suffer illegal attacks on their honor" (paragraph 29 of § 8 of Resolution A 3-0172/92 of July 8).

"Likewise, Organic Law 1/1982, of May 5, on the protection of the right to honor, privacy, and one's own image, after establishing that there will be no illegitimate intrusion in the protected sphere when the holder of the right has given their express consent for this purpose (art. 2), further specifies in its art. 3, regarding minors (and incapacitated individuals), that their consent must be given by themselves, if their maturity conditions allow it, and if not, the consent must be granted in writing by their legal representatives, who are obliged to inform the Public Prosecutor's Office in advance of the projected consent, and the Judge must decide if the Public Prosecutor's Office opposes it within eight days.

"The provisions of art. 3 of Organic Law 1/1982 are complemented, regarding minors, by the provisions of art. 4 of Organic Law 1/1996, of January 15, on the legal protection of minors, which, among other aspects, considers any use of their image or name in the media that may imply a detriment to their honor or reputation, or that is contrary to their interests, even if the consent of the minor or their legal representatives is obtained, to be an illegitimate intrusion into the right to honor, personal and family privacy, and one's own image of the minor" (art. 4.3).

In short, when it comes to the dissemination of images of minors in the media, the consent of the mature minor or their representatives is insufficient to legitimize the intrusion if there is a risk of harm to the minor's interests. (The emphasis is ours)

Finally, and considering it of interest as it pertains to facts similar to those analyzed in this sanctioning procedure resolution, let us recall that this Agency has already carried out sanctioning procedures against publications of images of minors, and whose arguments have been analyzed by the Courts of Justice. Thus, for example, while analyzing the previous applicable regulations, its arguments are fully applicable to the present case, it is worth highlighting the Judgment of October 20, 2011, of the National Court, Administrative Litigation Chamber (Rec.347/2009), which dismisses the appeal presented against the sanctioning resolution of the Spanish Agency for Data Protection for the publication of a video on YOUTUBE with images captured on the street of minors that allow for their identification. The aforementioned judgment dismisses the appeal presented because it sanctions the treatment of the images of the minors appearing in the cited video, which allow for their identification, which constitute personal data under article 3.a) of the LOPD, images captured in public spaces and disseminated on YouTube without their consent.

In the specific case examined, as we have indicated, the party being complained about disseminated through their Telegram channel (D.D.D.) the image of the complainant, a minor at the time of the capture and publication of said image.

Furthermore, the scope of the disclosure made must be taken into account, considering that the publication has been, and continues to be at the time of this resolution of the sanctioning procedure, available to more than (...) followers of the Telegram channel D.D.D. where the images subject to the complaint were and continue to be published.

For all the above reasons, in the present case, the processing carried out by the respondent party is deemed excessive, since the dissemination of the image of the minor was unnecessary for the informational purpose that could be understood as being pursued by the respondent party.

Consequently, in accordance with the evidence available at this moment of the resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to the respondent party, for violation of Article 5.1.c) of the GDPR.

V

Classification and qualification of the infringement of Article 5.1.c) of the GDPR

In accordance with the evidence available at this moment of the resolution of the sanctioning procedure, it is considered that the respondent party has processed data that is excessive as it was not necessary for the purpose for which it was processed.

The known facts constitute an infringement, attributable to the respondent party, of Article 5.1.c) of the GDPR, with the scope expressed in the previous Legal Grounds, which implies the commission of the infringement classified in Article 83.5, paragraph a) of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 72 "Very serious infringements" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

VI

Sanction for the infringement of Article 5.1.c) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the resolution of the sanctioning procedure, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm suffered (paragraph a). In the case at hand, the publication of the personal data — their image — of the respondent party implies the possibility of immediate and widespread dissemination of the content, considering that the channel where this information was published currently has more than (...) subscribers. Furthermore, it should be noted that, following the publication, numerous messages questioning the relationship between the complainant and the individual who is, in fact, their father have ensued. A circumstance that implies greater severity in the infringing conduct due to the consequences that such comments may have on the respondent party.
- The intentionality or negligence in the infringement (paragraph b). The publication of the personal data of the complainant was carried out directly by the respondent party, intentionally, on the Telegram channel owned by them.
- The impact on the rights of minors (Article 76.2.f) of the LOPDGDD in relation to Article 83.2 k) of the GDPR). The respondent party processed personal data belonging to a minor, thus, considering their special vulnerability, it can be deemed that an impact on their right to personal data protection has particularly significant implications and consequences.

The balance of the circumstances considered, with respect to the infringement committed by violating what is established in Article 5.1.c), allows for the imposition of an administrative fine of 5,000 euros (five thousand euros).

VII

Adoption of measures

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The infringement in the matter at hand may lead to the imposition on the responsible party of the obligation to adopt appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions established in the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified timeframe...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

In such a case, this Agency may require the responsible party to adjust their actions to the personal data protection regulations within the timeframe determined, with the scope expressed in the Legal Grounds of this agreement.

Considering the circumstances analyzed in this resolution of the sanctioning procedure, it is understood that the party being complained against may be carrying out excessive personal data processing, particularly as it affects a minor at the time of the publication. Therefore, it is considered that the continuation of the processing could result in a very serious and irreparable detriment to their fundamental right to personal data protection.

It should be noted that in the initiation agreement of this sanctioning procedure, it was agreed to impose as a provisional measure the suspension of the processing of personal data subject to the complaint through the removal of the content published on the Telegram channel of the party being complained against (D.D.D.), for which a maximum period of 10 calendar days was granted from the day of notification of the initiation agreement of the sanctioning procedure. Therefore, in order to safeguard and guarantee the rights and freedoms of the complaining party, it is agreed to elevate the provisional measure imposed to definitive status.

The imposition of these measures is compatible with imposing an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on D.D.D., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified in Article 83.5.a) of the GDPR, a fine of €5,000 (five thousand euros).

SECOND: TO CONFIRM, elevating it to definitive status, the provisional measure imposed on D.D.D., with NIF ***NIF.1, whose compliance must be evidenced the day after the notification of this resolution of the sanctioning procedure:

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- The suspension of the processing of personal data subject to complaint through the withdrawal of the content published on the Telegram channel of the party being complained against (D.D.D.).

THIRD: NOTIFY this resolution to D.D.D. with NIF ***NIF.1.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of

Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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